

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **Eldercare Locator** — call 1-800-677-1116 (<https://eldercare.acl.gov>)
- **Adult Protective Services** — call Contact your local APS agency
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

Asking a court to protect you. If someone has hurt you or made you afraid,

you can ask a court for an **Order for Protection** (sometimes called a restraining order). It is a free request you can make yourself: the court clerk's

office or a local advocate can give you the forms and walk you through

them, often
the same day. A domestic violence advocate (reachable through the
hotline above)
can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here
whenever you
are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case.
The dates below are
estimates generated automatically — **always confirm the
exact date with the court
or a lawyer.**

□ The bank sent a letter dated June 26th saying they flagged unusual activity and want me to come in. — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-07-06
- **Basis:** Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.
- **Triggering event:** notice posted on 2026-06-26
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a

nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

⚠ **There is an appointment on July 16th where I'm apparently supposed to sign listing papers.**

- **Estimated deadline:** 2026-07-16
- **Basis:** Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.
- **Triggering event:** hearing on 2026-07-16
- **Jurisdiction:** MN
- This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer.

⚠ **Dale grabbed my wrist hard enough to leave a bruise.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-06-14
- **Jurisdiction:** MN

- Estimated — confirm the exact date with the court or a lawyer.
-

Executive Summary

This intake surfaced 21 potential legal issues across Minnesota. The most strongly supported issues are Undue Influence, Elder Abuse, and Breach of Fiduciary Duty. IMPORTANT: at least one deadline appears to have already passed — The bank sent a letter dated June 26th saying they flagged unusual activity and want me to come in. (computed 2026-07-06) [Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.]. Confirm this immediately, as missed deadlines can end a case. Safety concerns were detected in this narrative; see the safety resources below. Analysis completeness is 76%; 30 follow-up questions below would strengthen the assessment.

Completeness Score: 76%

Untitled Intake

Generated: 2026-07-11 21:15 UTC

Matter ID: 228

Run ID: 61

Completeness: 76%

General

| Elder Abuse

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RxwfbvWrxjdHqJhrBu3RWT>

ISSUE

The reported incident of Dale grabbing Lorraine's wrist and the threatening comments suggest potential elder abuse, especially given the context of financial exploitation.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Elder Abuse' has not been explored with fact mappings

CONCLUSION

No elements defined

| Breach of Fiduciary Duty

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/RtmRdqzdG4lddVrtCToiL1>

ISSUE

Dale's withdrawal of large sums and monthly transfers to himself without Lorraine's consent could indicate a breach of fiduciary duty which warrants further investigation.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Fiduciary Duty' has not been explored with fact mappings

CONCLUSION

No elements defined

| Capacity Evaluation for Power of Attorney Execution

Claim Type: discovered | **Confidence:** 65%

ISSUE

Understanding Lorraine's mental capacity during the execution of the power of attorney is critical to addressing claims of undue influence and evaluating the legal standing of the document.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Capacity Evaluation for Power of Attorney Execution' has not been explored with fact mappings

CONCLUSION

No elements defined

| Asset Preservation Strategies

Claim Type: discovered | **Confidence:** 40%

ISSUE

As funds are being depleted, exploring strategic measures to preserve Lorraine's assets is essential to prevent further exploitation.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Asset Preservation Strategies' has not been explored with fact mappings

CONCLUSION

No elements defined

| Capacity to Sign Power of Attorney

Claim Type: discovered | **Confidence:** 40%

ISSUE

Despite Lorraine having a sound mind, the use of pain pills at the time of signing raises questions about her cognitive ability to fully comprehend the document.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Is there a specific time frame within which Lorraine's capacity to contest the power of attorney must be raised?

CONCLUSION

No elements defined

| Interference with Rights of Principal

Claim Type: discovered | **Confidence:** 40%

ISSUE

Dale's control over the environment and information related to the power of attorney may infringe upon Lorraine's authority and autonomy as the principal.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Interference with Rights of Principal' has not been explored with fact mappings

CONCLUSION

No elements defined

| Potential Criminal Charges

Claim Type: discovered | **Confidence:** 40%

ISSUE

Lorraine's situation could involve possible criminal conduct considering financial exploitation laws and her fears of physical harm, making it crucial to examine this avenue.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Criminal Charges' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Reporting Obligations for Financial Exploitation:** 40% confidence
- **Domestic Abuse Concerns:** 30% confidence
- **Improper Execution of Power of Attorney:** 30% confidence
- **Potential Revocation of Power of Attorney:** 30% confidence
- **Prevention of Fraudulent Transactions:** 30% confidence

Minnesota

Undue Influence

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RW5myKZOaxNl6EtRtjlHHq>

ISSUE

Lorraine signed the power of attorney while on pain pills, and evidence suggests Dale may have exerted influence over her during this process, especially considering her fears and the bruise from Dale grabbing her wrist.

RULE

No authorities identified for this claim.

APPLICATION

- **Improper benefit to the influencer:** Unsupported - The influencer received a benefit from the transaction that is the subject of the undue influence claim.
- **Existence of a confidential relationship:** Supported (85% confidence) - There must be a relationship between the parties in which one party has a special confidence in the other, such as a parent-child relationship.
 - Fact: Lorraine is 79 years old. (85% match)
 - Fact: Lorraine and Frank raised their kids in the house. (85% match)
 - Fact: Dale is Lorraine's son. (85% match)
- **Loss of voluntary decision-making:** Supported (81% confidence) - The influenced party must have lost the ability to make decisions freely and voluntarily as a result of the influence.
 - Fact: Lorraine is 79 years old. (81% match)
 - Fact: Lorraine has been widowed since 2019. (81% match)
- **Use of influence:** Supported (85% confidence) - The party accused of undue influence must have used their position to exert pressure on the influenced party to obtain consent.
 - Fact: Lorraine signed where Dale pointed. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 85): Element 'Improper benefit to the influencer' is not yet supported by any facts
 - Element: Improper benefit to the influencer
- **Procedural Requirement** (Priority 50): Was there a specific time frame within which Lorraine needs to file a claim regarding the power of attorney due to undue influence?

CONCLUSION

3 of 4 elements supported (63% confidence)

| Civil Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Undue Influence

FOLIO IRI: <https://folio.openlegalstandard.org/R8jYAnNATrfoBxAtIKpf72X>

ISSUE

Discovered via FOLIO ontology traversal from Undue Influence (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What are the procedural requirements for filing civil claims connected to emotional distress or financial exploitation, and does Lorraine meet them?

CONCLUSION

No elements defined

Emotional Distress

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/R9IldpgAfUyz3upHKvXdn8y>

ISSUE

Dale's aggressive behavior, including grabbing Lorraine's wrist and belittlement, creates serious emotional distress and fear for her safety in her own home.

RULE

No authorities identified for this claim.

APPLICATION

- **Conduct by the defendant:** Supported (85% confidence) - The defendant's conduct must have been extreme and outrageous, going beyond all bounds of decency.
 - Fact: Dale grabbed my wrist hard enough to leave a bruise. (85% match)
 - Fact: Dale yells so much that the neighbor asked me about it. (85% match)
 - Fact: On June 14th, I asked Dale about the boat. (85% match)
- **Severe emotional distress:** Supported (85% confidence) - The victim experienced severe emotional distress that is more than what a reasonable person would endure.
 - Fact: The speaker does not want to put Dale in jail. (81% match)
 - Fact: The speaker does not want to be afraid at her own kitchen table. (85% match)

- Fact: Dale yells so much that the neighbor asked me about it. (85% match)
- Fact: I am afraid to say anything in my own house since then. (85% match)
- **Causation:** Supported (85% confidence) - The conduct caused the emotional distress suffered by the victim.
 - Fact: The speaker wants to keep her house. (81% match)
 - Fact: Dale said if I keep asking questions I'll 'end up at Ridgeview'. (85% match)
 - Fact: Dale yells so much that the neighbor asked me about it. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the filing deadline for claims related to emotional distress, and has Lorraine missed it?

CONCLUSION

3 of 3 elements supported (85% confidence)

| Bystander Emotional Distress

Claim Type: discovered | **Confidence:** 40%

Related to: Emotional Distress

FOLIO IRI: <https://folio.openlegalstandard.org/RBxqZs1JzyYftYuWzx1yHib>

ISSUE

Discovered via FOLIO ontology traversal from Emotional Distress (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Bystander Emotional Distress' has not been explored with fact mappings

CONCLUSION

No elements defined

| Intentional Infliction of Emotional Distress

Claim Type: discovered | **Confidence:** 40%

Related to: Emotional Distress

FOLIO IRI: <https://folio.openlegalstandard.org/R84N0KXivn5IJaqn8xVwPDg>

ISSUE

Discovered via FOLIO ontology traversal from Emotional Distress (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Intentional Infliction of Emotional Distress' has not been explored with fact mappings

CONCLUSION

No elements defined

| Financial Exploitation of a Vulnerable Adult

Claim Type: discovered | **Confidence:** 40%

ISSUE

There are significant withdrawals and transfers from Lorraine's account without her consent or approval, which constitute financial exploitation. The circumstances raise the risk of financial exploitation under Minnesota law applicable to vulnerable adults.

RULE

No authorities identified for this claim.

APPLICATION

- **Adult status and vulnerability:** Supported (85% confidence) - The victim is an elder or vulnerable adult, defined under Minnesota law.
 - Fact: Lorraine is 79 years old. (85% match)
 - Fact: Lorraine has been widowed since 2019. (85% match)
 - Fact: Minnesota law requires reporting of suspected financial exploitation of a vulnerable adult. (85% match)

- **Resulting financial harm:** Supported (85% confidence) - The victim suffered financial loss as a result of the exploitation.
 - Fact: The speaker wants the money to stop disappearing. (85% match)
 - Fact: ATM cash withdrawals in March totaled \$1,400. (78% match)
 - Fact: There is cash coming out at the ATM every single week, seven, eight, nine hundred dollars. (85% match)
 - Fact: The speaker wants to keep her house. (85% match)
 - Fact: Lorraine did not make or approve unusual ATM withdrawals since January. (82% match)
 - Fact: Lorraine's house is paid off. (85% match)
 - Fact: It's about \$14,000 gone since January. (85% match)
- **Financial transaction:** Supported (85% confidence) - There exists an unauthorized financial transaction, such as stealing, misusing, or diverting funds belonging to the vulnerable adult.
 - Fact: Lorraine did not make or approve unusual ATM withdrawals since January. (78% match)
 - Fact: The power of attorney grants Lorraine the power for fiduciary transactions. (81% match)
 - Fact: My Social Security goes into my checking account. (85% match)
 - Fact: Dale took my debit card to do the shopping. (85% match)
 - Fact: The power of attorney grants Lorraine the power for gift transactions. (85% match)
 - Fact: Lorraine made online transfers of \$500 each month to Dale's account from January to June. (82% match)
 - Fact: There are transfers to Dale's own account every month that he calls his 'caregiver pay'. (85% match)

- **Intent to exploit:** Supported (85% confidence) - The perpetrator intended to exploit the victim's financial resources.
 - Fact: The power of attorney grants Lorraine the power for insurance transactions. (81% match)
 - Fact: The power of attorney grants Lorraine the power for claims and litigation. (81% match)
 - Fact: We never agreed to the caregiver pay. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the statute of limitations for filing a claim related to financial exploitation under Minnesota law, and is it still applicable in this case?

CONCLUSION

4 of 4 elements supported (85% confidence)

| Request to Revoke Power of Attorney

Claim Type: discovered | **Confidence:** 40%

ISSUE

Lorraine is concerned about the power of attorney granted to Dale and expresses a desire to know how to undo it, which indicates a basis for seeking its revocation due to potential exploitative circumstances.

RULE

No authorities identified for this claim.

APPLICATION

- **Capacity to revoke:** Supported (85% confidence) - The principal must have the mental capacity to understand the effect of revoking the power of attorney.
 - Fact: The power of attorney grants Lorraine the power for fiduciary transactions. (85% match)
 - Fact: Lorraine was on pain pills when she signed the power of attorney. (81% match)
 - Fact: Lorraine's mind is fine. (85% match)
 - Fact: Lorraine M. Pryzbylski is the principal of the power of attorney. (85% match)
 - Fact: The power of attorney shall continue to be effective if Lorraine becomes incapacitated or incompetent. (85% match)
 - Fact: The speaker wants the money to stop disappearing. (85% match)
 - Fact: The power of attorney was signed by Lorraine on December 8th. (85% match)
 - Fact: The speaker wants to keep her house. (85% match)
- **Notice to agent:** Supported (81% confidence) - The agent (Dale) must be notified of the revocation of the power of attorney.
 - Fact: The power of attorney grants Lorraine the power for tangible personal property transactions. (81% match)
- **Proper method of revocation:** Supported (85% confidence) - The principal must follow appropriate legal procedures to revoke the power of attorney.
 - Fact: The power of attorney grants Lorraine the power for fiduciary transactions. (81% match)
 - Fact: Lorraine signed the power of attorney at the kitchen table. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What specific legal steps must Lorraine follow to revoke the power of attorney, and are there any deadlines involved?

CONCLUSION

3 of 3 elements supported (84% confidence)

More possible issues (show more)

- **Negligent Infliction of Emotional Distress**: 40% confidence (related to Emotional Distress)
- **Negligent Infliction of Emotional Distress on a Bystander**: 40% confidence (related to Emotional Distress)
- **Probate Claims**: 40% confidence (related to Undue Influence)
- **Trust and Estate Claims**: 40% confidence (related to Undue Influence)
- **Witness to Injury Suffering Emotional Distress**: 40% confidence (related to Emotional Distress)

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Improper benefit to the influencer' is not yet supported by any facts
 - **Claim**: Undue Influence
 - **Element**: Improper benefit to the influencer

Follow-up Steps

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: The bank sent a letter dated June 26th saying they flagged unusual activity

and want me to come in. (estimated 2026-07-06; Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.). WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

- **Deadline:** 2026-07-06

- [] **[URGENT]** Confirm the deadline for: There is an appointment on July 16th where I'm apparently supposed to sign listing papers. (estimated 2026-07-16; Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.). This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer.

- **Deadline:** 2026-07-16

- [] **[URGENT]** You asked if you can 'undo' the power of attorney. Yes — as long as your mind is clear, you can revoke it at any time with a signed, dated writing, and it takes effect against others (like the bank) once they actually get notice (Minn. Stat. § 523.11). The key step is delivering written revocation to BOTH your son and the bank right away. Would you like help doing that this week? [Authority: Minn. Stat. § 523.11, subd. 1 (a competent

principal may revoke a power of attorney by a signed, dated writing; effective as to a third party on actual notice)]

- [] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [] **[URGENT]** Because you may be a 'vulnerable adult' (relying on your son for care after surgery), there is a special court order that can quickly FREEZE the account draining and block the house sale — an Order for Protection Against Financial Exploitation of a Vulnerable Adult (Minn. Stat. § 609.2334), which a judge can issue right away in an emergency. This can also be reported to the state (MAARC, Minn. Stat. § 626.557). Would you like to ask the court for this before the July 16 appointment? [Authority: Minn. Stat. § 609.2334 (Order for Protection Against Financial Exploitation of a Vulnerable Adult — ex parte relief available); Minn. Stat. § 626.557 (vulnerable-adult reporting / MAARC)]
- [] **[URGENT]** Even under a power of attorney, your son could pay himself or transfer your money to himself ONLY if the document specifically allowed it (Minn. Stat. § 523.24) — if that box was left blank, those transfers and the 'caregiver pay' likely exceeded his authority, revocation or not. A missing notary can also make the whole POA invalid (Minn. Stat. § 523.01). Do you have the actual POA document so a lawyer can check what was and wasn't authorized? [Authority: Minn. Stat. § 523.24 (statutory short-form POA authorizes self-gifting/self-transfers only if expressly elected); Minn. Stat. § 523.01 (valid POA requires acknowledgment)]
- [] **[URGENT]** Your son grabbed your wrist hard enough to bruise and threatened you in your own home. Because he is a family/ household member, you can ask for an Order for Protection that a

judge can grant the same day (Minn. Stat. § 518B.01); a Harassment Restraining Order (Minn. Stat. § 609.748) is a backup. This is separate from the money issues. Do you have the photo of the bruise and would you feel safer with such an order? [Authority: Minn. Stat. § 518B.01 (Order for Protection — a son living in the home is a family/household member; ex parte relief); Minn. Stat. § 609.748 (Harassment Restraining Order fallback)]

- [] **[IMPORTANT]** Potential claim 'Civil Claims' has not been explored with fact mappings
 - **Claim:** Civil Claims
- [] **[IMPORTANT]** Potential claim 'Probate Claims' has not been explored with fact mappings
 - **Claim:** Probate Claims
- [] **[IMPORTANT]** Potential claim 'Intentional Infliction of Emotional Distress' has not been explored with fact mappings
 - **Claim:** Intentional Infliction of Emotional Distress
- [] **[IMPORTANT]** Potential claim 'Witness to Injury Suffering Emotional Distress' has not been explored with fact mappings
 - **Claim:** Witness to Injury Suffering Emotional Distress
- [] **[IMPORTANT]** Potential claim 'Bystander Emotional Distress' has not been explored with fact mappings
 - **Claim:** Bystander Emotional Distress
- [] **[IMPORTANT]** Potential claim 'Negligent Infliction of Emotional Distress on a Bystander' has not been explored with fact mappings
 - **Claim:** Negligent Infliction of Emotional Distress on a Bystander
- [] **[IMPORTANT]** Potential claim 'Negligent Infliction of Emotional Distress' has not been explored with fact mappings
 - **Claim:** Negligent Infliction of Emotional Distress

- [] **[IMPORTANT]** Potential claim 'Elder Abuse' has not been explored with fact mappings
 - **Claim:** Elder Abuse
- [] **[IMPORTANT]** Potential claim 'Breach of Fiduciary Duty' has not been explored with fact mappings
 - **Claim:** Breach of Fiduciary Duty
- [] **[IMPORTANT]** Potential claim 'Prevention of Fraudulent Transactions' has not been explored with fact mappings
 - **Claim:** Prevention of Fraudulent Transactions
- [] **[IMPORTANT]** Potential claim 'Interference with Rights of Principal' has not been explored with fact mappings
 - **Claim:** Interference with Rights of Principal
- [] **[IMPORTANT]** Potential claim 'Potential Revocation of Power of Attorney' has not been explored with fact mappings
 - **Claim:** Potential Revocation of Power of Attorney
- [] **[IMPORTANT]** Potential claim 'Domestic Abuse Concerns' has not been explored with fact mappings
 - **Claim:** Domestic Abuse Concerns
- [] **[IMPORTANT]** Potential claim 'Potential Criminal Charges' has not been explored with fact mappings
 - **Claim:** Potential Criminal Charges
- [] **[IMPORTANT]** Potential claim 'Reporting Obligations for Financial Exploitation' has not been explored with fact mappings
 - **Claim:** Reporting Obligations for Financial Exploitation
- [] **[IMPORTANT]** Potential claim 'Capacity Evaluation for Power of Attorney Execution' has not been explored with fact mappings
 - **Claim:** Capacity Evaluation for Power of Attorney Execution

- [] **[IMPORTANT]** Potential claim 'Asset Preservation Strategies' has not been explored with fact mappings
 - **Claim:** Asset Preservation Strategies
- [] **[IMPORTANT]** Was there a specific time frame within which Lorraine needs to file a claim regarding the power of attorney due to undue influence?
 - **Claim:** Undue Influence
- [] **[IMPORTANT]** What is the statute of limitations for filing a claim related to financial exploitation under Minnesota law, and is it still applicable in this case?
 - **Claim:** Financial Exploitation of a Vulnerable Adult
- [] **[IMPORTANT]** What is the filing deadline for claims related to emotional distress, and has Lorraine missed it?
 - **Claim:** Emotional Distress
- [] **[IMPORTANT]** What specific legal steps must Lorraine follow to revoke the power of attorney, and are there any deadlines involved?
 - **Claim:** Request to Revoke Power of Attorney
- [] **[IMPORTANT]** Are there time limits for bringing a trust or estate claim related to undue influence, and is Lorraine within that time frame?
 - **Claim:** Trust and Estate Claims
- [] **[IMPORTANT]** What are the procedural requirements for filing civil claims connected to emotional distress or financial exploitation, and does Lorraine meet them?
 - **Claim:** Civil Claims
- [] **[IMPORTANT]** What are the deadlines and jurisdictional requirements for probate claims in Minnesota, and is Lorraine subject to these?
 - **Claim:** Probate Claims

- [] **[IMPORTANT]** Is there a specific time frame within which Lorraine's capacity to contest the power of attorney must be raised?
 - **Claim:** Capacity to Sign Power of Attorney

Gap Report Appendix

Overall Completeness: 76%

[===== - - - - -] 75%

| Asset Preservation Strategies

- **Unexplored Claim** (Priority 50): Potential claim 'Asset Preservation Strategies' has not been explored with fact mappings
 - See Action Item #25

| Breach of Fiduciary Duty

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Fiduciary Duty' has not been explored with fact mappings
 - See Action Item #17

| Bystander Emotional Distress

- **Unexplored Claim** (Priority 50): Potential claim 'Bystander Emotional Distress' has not been explored with fact mappings
 - See Action Item #13

Capacity Evaluation for Power of Attorney Execution

- **Unexplored Claim** (Priority 50): Potential claim 'Capacity Evaluation for Power of Attorney Execution' has not been explored with fact mappings
 - See Action Item #24

Capacity to Sign Power of Attorney

- **Procedural Requirement** (Priority 50): Is there a specific time frame within which Lorraine's capacity to contest the power of attorney must be raised?
 - See Action Item #33

Civil Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings
 - See Action Item #9
- **Procedural Requirement** (Priority 50): What are the procedural requirements for filing civil claims connected to emotional distress or financial exploitation, and does Lorraine meet them?
 - See Action Item #31

Domestic Abuse Concerns

- **Unexplored Claim** (Priority 50): Potential claim 'Domestic Abuse Concerns' has not been explored with fact mappings
 - See Action Item #21

Elder Abuse

- **Unexplored Claim** (Priority 50): Potential claim 'Elder Abuse' has not been explored with fact mappings
 - See Action Item #16

Emotional Distress

- **Procedural Requirement** (Priority 50): What is the filing deadline for claims related to emotional distress, and has Lorraine missed it?
 - See Action Item #28

Financial Exploitation of a Vulnerable Adult

- **Procedural Requirement** (Priority 50): What is the statute of limitations for filing a claim related to financial exploitation under Minnesota law, and is it still applicable in this case?
 - See Action Item #27

Intentional Infliction of Emotional Distress

- **Unexplored Claim** (Priority 50): Potential claim 'Intentional Infliction of Emotional Distress' has not been explored with fact mappings
 - See Action Item #11

Interference with Rights of Principal

- **Unexplored Claim** (Priority 50): Potential claim 'Interference with Rights of Principal' has not been explored with fact mappings
 - See Action Item #19

Negligent Infliction of Emotional Distress

- **Unexplored Claim** (Priority 50): Potential claim 'Negligent Infliction of Emotional Distress' has not been explored with fact mappings
 - See Action Item #15

Negligent Infliction of Emotional Distress on a Bystander

- **Unexplored Claim** (Priority 50): Potential claim 'Negligent Infliction of Emotional Distress on a Bystander' has not been explored with fact mappings
 - See Action Item #14

Potential Criminal Charges

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Criminal Charges' has not been explored with fact mappings
 - See Action Item #22

Potential Revocation of Power of Attorney

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Revocation of Power of Attorney' has not been explored with fact mappings
 - See Action Item #20

Prevention of Fraudulent Transactions

- **Unexplored Claim** (Priority 50): Potential claim 'Prevention of Fraudulent Transactions' has not been explored with fact mappings
 - See Action Item #18

Probate Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Probate Claims' has not been explored with fact mappings
 - See Action Item #10

- **Procedural Requirement** (Priority 50): What are the deadlines and jurisdictional requirements for probate claims in Minnesota, and is Lorraine subject to these?

- See Action Item #32

Reporting Obligations for Financial Exploitation

- **Unexplored Claim** (Priority 50): Potential claim 'Reporting Obligations for Financial Exploitation' has not been explored with fact mappings

- See Action Item #23

Request to Revoke Power of Attorney

- **Procedural Requirement** (Priority 50): What specific legal steps must Lorraine follow to revoke the power of attorney, and are there any deadlines involved?

- See Action Item #29

Trust and Estate Claims

- **Procedural Requirement** (Priority 50): Are there time limits for bringing a trust or estate claim related to undue influence, and is Lorraine within that time frame?

- See Action Item #30

Uncategorized

- **Procedural Requirement** (Priority 90): What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority:

Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]

- See Action Item #5

- **Procedural Requirement** (Priority 92): You asked if you can 'undo' the power of attorney. Yes — as long as your mind is clear, you can revoke it at any time with a signed, dated writing, and it takes effect against others (like the bank) once they actually get notice (Minn. Stat. § 523.11). The key step is delivering written revocation to BOTH your son and the bank right away. Would you like help doing that this week? [Authority: Minn. Stat. § 523.11, subd. 1 (a competent principal may revoke a power of attorney by a signed, dated writing; effective as to a third party on actual notice)]

- See Action Item #4

- **Procedural Requirement** (Priority 88): Even under a power of attorney, your son could pay himself or transfer your money to himself ONLY if the document specifically allowed it (Minn. Stat. § 523.24) — if that box was left blank, those transfers and the 'caregiver pay' likely exceeded his authority, revocation or not. A missing notary can also make the whole POA invalid (Minn. Stat. § 523.01). Do you have the actual POA document so a lawyer can check what was and wasn't authorized? [Authority: Minn. Stat. § 523.24 (statutory short-form POA authorizes self-gifting/self-transfers only if expressly elected); Minn. Stat. § 523.01 (valid POA requires acknowledgment)]

- See Action Item #7

- **Procedural Requirement** (Priority 90): Because you may be a 'vulnerable adult' (relying on your son for care after surgery), there is a special court order that can quickly FREEZE the account draining and block the house sale — an Order for Protection Against Financial Exploitation of a Vulnerable Adult (Minn. Stat. § 609.2334), which a judge can issue right away in an emergency. This can also be reported to the state (MAARC, Minn.

Stat. § 626.557). Would you like to ask the court for this before the July 16 appointment? [Authority: Minn. Stat. § 609.2334 (Order for Protection Against Financial Exploitation of a Vulnerable Adult — ex parte relief available); Minn. Stat. § 626.557 (vulnerable-adult reporting / MAARC)]

- See Action Item #6

- **Procedural Requirement** (Priority 88): Your son grabbed your wrist hard enough to bruise and threatened you in your own home. Because he is a family/household member, you can ask for an Order for Protection that a judge can grant the same day (Minn. Stat. § 518B.01); a Harassment Restraining Order (Minn. Stat. § 609.748) is a backup. This is separate from the money issues. Do you have the photo of the bruise and would you feel safer with such an order? [Authority: Minn. Stat. § 518B.01 (Order for Protection — a son living in the home is a family/household member; ex parte relief); Minn. Stat. § 609.748 (Harassment Restraining Order fallback)]

- See Action Item #8

Undue Influence

- **Unsupported Element** (Priority 85): Element 'Improper benefit to the influencer' is not yet supported by any facts
 - Element: Improper benefit to the influencer
 - See Action Item #1
- **Procedural Requirement** (Priority 50): Was there a specific time frame within which Lorraine needs to file a claim regarding the power of attorney due to undue influence?
 - See Action Item #26

Witness to Injury Suffering Emotional Distress

- **Unexplored Claim** (Priority 50): Potential claim 'Witness to Injury Suffering Emotional Distress' has not been explored with fact mappings
 - See Action Item #12

Open Questions

1. Would you like assistance in preparing and delivering the written revocation for the power of attorney to both your son and the bank?
2. Do you have the actual power of attorney document for us to review?
3. Would you feel safer applying for an Order for Protection, given the physical threats you mentioned?
4. Do you have any evidence, like a photo of your bruise, that could support your case for protection?
5. Would you like to know more about quickly freezing your account to prevent further financial exploitation?
6. Can you tell me more about any situations where you felt pressured or manipulated into decisions regarding your finances?
7. Have you had discussions or agreements regarding your finances that may not have been fully voluntary?
8. Have you ever felt your son was taking advantage of your trust or relationship for his benefit?
9. Would you like support in writing a revocation letter for the power of attorney to send to both your son and the bank?
10. Do you have the original power of attorney document so we can check its details?
11. Do you feel threatened and would you like help asking for an Order for Protection based on your son's actions?
12. Have you taken photos of your injuries, such as the bruise, that can support your request for protection?

13. Would you like to know about getting a different order to protect your finances from your son's actions?
14. Have you experienced any loss or influence in your decision-making because of your son's behavior?
15. Do you think your son improperly benefited from your money or care?
16. Can you tell me about any times you felt pressured or influenced to make decisions you weren't comfortable with?
17. Would you like assistance with writing a document to revoke the power of attorney?
18. Do you have the actual power of attorney document so we can review it?
19. Would you feel safer if we helped you apply for an Order for Protection based on the threats and physical harm you described?
20. Do you want information on how to ask for an Order for Protection due to the physical harm you've experienced?
21. Are you aware that there is a special legal process to freeze your accounts if you think your son is financially exploiting you?
22. Have you experienced distress or emotional harm as a result of your son's actions, and would you like to discuss potential legal claims?
23. Do you have documentation or any evidence about the emotional impact his actions have had on you?
24. Do you have the actual power of attorney document so we can check what it allows your son to do?
25. Would you like help writing and delivering a revocation of the power of attorney to your son and the bank this week?
26. Do you have a photo of the bruise, and would you feel safer if we pursued an Order for Protection?
27. Are you interested in asking the court for an Order for Protection Against Financial Exploitation due to your reliance on your son for care?

28. Do you feel that you have suffered emotional harm due to your son's actions, and would you like to discuss potential claims related to emotional distress?
29. Have you experienced any financial loss or wrongdoing related to your son's handling of your affairs that we should discuss further?
30. Are you aware of any other incidents of neglect or harm that could be classified as elder abuse?